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U.S. Department of State Diplomacy in Action

2008 Human Rights Report: Iran*

BUREAU OF DEMOCRACY, HUMAN RIGHTS, AND LABOR

[2008 Country Reports on Human Rights Practices \(//2009-2017.state.gov/j/drl/rls/hrrpt/2008/index.htm\)](http://2009-2017.state.gov/j/drl/rls/hrrpt/2008/index.htm)

Report

February 25, 2009

This is the basic text view. [SWITCH NOW \(//j/drl/rls/hrrpt/humanrightsreport/index.htm?dldid=119115&year=2008\)](http://j/drl/rls/hrrpt/humanrightsreport/index.htm?dldid=119115&year=2008) to the new, more interactive format.

The Islamic Republic of Iran, with a population of approximately 70 million, is a constitutional, theocratic republic in which Shia Muslim clergy dominate the key power structures. Government legitimacy is based on the twin pillars of popular sovereignty—albeit restricted—and the rule of the Supreme Leader of the Islamic Revolution. The current supreme leader, Ayatollah Ali Khamenei, was not directly elected but chosen by a directly elected body of religious leaders, the Assembly of Experts, in 1989. Khamenei's writ dominated the legislative, executive, and judicial branches of government. He directly controlled the armed forces and indirectly controlled the internal security forces, the judiciary, and other key institutions. The legislative branch is the popularly elected 290-seat Islamic Consultative Assembly, or Majles. An unelected 12-member Guardian Council reviewed all legislation passed by the Majles for adherence to Islamic and constitutional principles and also screened presidential and Majles candidates for eligibility. In 2005 hardline conservative Mahmoud Ahmadi-Nejad won the presidency in an election widely viewed by the international community as neither free nor fair. Civilian authorities did not fully maintain effective control of security forces.

The government's poor human rights record worsened, and it continued to commit numerous serious abuses. The government severely limited citizens' right to change their government peacefully through free and fair elections. The government executed numerous persons for criminal convictions as juveniles and after unfair trials. Security forces were implicated in custodial deaths and committed other acts of politically motivated violence, including torture. The government administered severe officially sanctioned punishments, including death by stoning, amputation, and flogging. Vigilante groups with ties to the government committed acts of violence. Prison conditions remained poor. Security forces arbitrarily arrested and detained individuals, often holding them incommunicado. Authorities held political prisoners and intensified a crackdown against women's rights reformers, ethnic minority rights activists, student activists, and religious minorities. There was a lack of judicial independence and fair public trials. The government severely restricted civil liberties, including freedoms of speech, expression, assembly, association, movement, and privacy, and it placed severe restrictions on freedom of religion. Official corruption and a lack of government transparency persisted. Violence and legal and societal discrimination against women, ethnic and religious minorities, and homosexuals; trafficking in persons; and incitement to anti-Semitism remained problems. The government severely restricted workers' rights, including freedom of association and the right to organize and bargain

collectively, and arrested numerous union organizers. Child labor remained a serious problem. On December 18, for the sixth consecutive year, the UN General Assembly (UNGA) adopted a resolution on Iran expressing "deep concern at ongoing systematic violations of human rights."

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were reports that the government and its agents committed arbitrary or unlawful killings.

On January 6, security forces arrested Kurdish-Iranian student Ebrahim Lotfallahi as he left a university exam. According to a domestic human rights group, the revolutionary court in the province of Sanandaj had issued an arrest warrant, but Lotfallahi's family was not aware of the charges against him. Nine days later, the authorities notified Lotfallahi's family of his death and told them he had committed suicide in prison. Intelligence officials buried Lotfallahi in secret against the wishes of his family, who did not believe he had committed suicide. On February 9, the judiciary announced there would be no autopsy conducted on Lotfallahi, nor an investigation into his death. According to the domestic press, intelligence officials threatened to file charges against Lotfallahi's family for publicly questioning the suicide claim.

On May 16, family members alleged that Kurdish political prisoner Kaveh Azizpour died in police custody due to torture, according to press reports. Authorities had arrested Azizpour in 2006 and charged him with supporting the banned Kurdish Democratic Party of Iran. Judiciary officials stated that 25-year-old Azizpour died as a result of a stroke, but family members argued that the stroke was caused by torture.

On November 27, according to domestic human rights activists, security agents in Zahedan entered a private home and severely beat Bahman Rigi and a man identified only as "Mohammad" before taking them to an undisclosed location. Four days later, officials notified Mohammad's family that he had died in custody due to withdrawal from methamphetamines. Mohammad's family stated he did not have a history of drug use and that his body showed obvious signs of severe abuse such as a cranial fracture, bruises, and broken fingers. According to activists, authorities targeted Rigi and Mohammad because they were members of the Baluch ethnic group.

On December 21, according to domestic press reports, Ali Sadeqi, a prisoner in Dastgerd Prison in Isfahan whom authorities arrested on charges of drug trafficking, allegedly died from torture while in custody.

There were no updates in the May 2007 killing of 11-year-old Roya Sarani, reportedly by members of the Law Enforcement Forces (LEF). The government did not investigate the incident.

On February 26, judiciary officials reportedly agreed to exhume the body of Zahra Bani-Ameri (also known as Zahra Bani-Yagoub) at the request of her family to determine the cause of her death; by year's end this had not happened. In October 2007 Bani-Ameri, a 27-year-old female physician, died while in custody in the town of Hamedan. Security forces arrested her and her fiancé in a public park on charges of having an "illegal relationship." The next day, officials informed her family that she committed suicide while in detention.

According to international press reports, authorities executed approximately 240 individuals during the year following unfair trials (trials conducted in secret or without adhering to basic principles of due process). Exiles and human rights monitors alleged that many persons supposedly executed for criminal offenses, such as narcotics trafficking, were political dissidents. The law criminalized dissent and applied the death penalty to offenses such as apostasy (conversion from Islam), "attempts against the security of the state," "outrage against high-ranking officials," and "insults against the memory of Imam Khomeini and against the Supreme Leader of the Islamic Republic."

On August 4, authorities in Zahedan executed journalist and education activist Yaghoob Mirnehad after a secret trial in which he was accused of ties to the militant group People's Resistance Movement of Iran (formerly Jundallah). Human rights organizations believe Mirnehad, an ethnic Baluch, was targeted because he criticized local government officials in Sistan va Baluchistan province.

Public executions continued throughout the year despite the judiciary chief's January 30 directive banning them (except in cases he approved). On July 10, officials in Bushehr province hanged four men in a public square in Borazjan. On July 14, a government-owned radio station reported that six men were publicly hanged in Khorasan province. The report did not identify the men by name and provided no details of the charges against them.

The government executed minors and juvenile offenders despite an October 15 judicial directive banning the practice. Three days after the prohibition was announced, Hussein Sebhi, deputy for judicial affairs to the prosecutor general, told the press the ban applied only to narcotics cases and judges did not have the authority to vacate the death penalty in murder cases. On September 2, UN Commissioner for Human Rights Navi Pillay called on the government to end the practice of juvenile executions. According to press reports, authorities executed at least eight juvenile offenders during the year, and approximately 130 remained on death row at year's end.

For example, on June 10, authorities in Sanandaj executed 16-year-old Mohammed Hassanzadeh for his alleged role in the death of another youth. Hassanzadeh was 14 at the time of the incident.

On August 19, authorities in Isfahan hanged 20-year-old Seyyed Reza Hejazi for his alleged role in the death of a man during a fight involving several others. Hejazi, who was 15 at the time, insisted he did not intend to kill the man. According to human rights organizations, authorities failed to give Hejazi's lawyer 48 hours' notice of the pending execution as required by law.

During the year, the government did not investigate allegations from human rights groups that authorities in the southeastern province of Sistan va Baluchistan executed at least 50 detainees in 2007 after reportedly unfair trials for attacks against government officials.

In January 2007 three UN independent experts released a joint statement calling on the government to halt the imminent executions of seven Ahvazi Arabs--Ghasem Salami, Mohammad Lazem Kaabpour, Abdolamir Farjolah Kaab, Alireza Asakereh, Majad Albughbish, Adolreza Sanawati and Khalaf Dohrab Khanaferreh--after unfair trials in Khuzestan province. The status of these individuals was unknown at year's end. On January 29, officials executed Ahvazi activist Zamel Bawi without providing his lawyer 48 hours' notice, as required by law.

Adultery remained punishable by death by stoning. On July 20, the international press reported that courts sentenced eight women and one man to death by stoning for adultery and sex-related offenses. On August 5, judiciary spokesman Ali Reza Jamshidi announced that the government had suspended several stoning sentences and commuted four to lashings or prison terms. However, according to domestic human rights activists, on December 25, officials in Mashhad executed two men by stoning, including Houshang Koudadadeh, who was convicted of rape and adultery. A third convicted man, identified only as Mahmoud G., escaped during the stoning.

On January 14, according to domestic press reports, the case of the 2003 death of Zahra Kazemi, a dual Iranian-Canadian citizen, was returned to the public prosecutor's office and the Tehran appeals court to be reinvestigated. This action followed the Supreme Court's December 2007 annulment of the original verdict of the primary court. Kazemi, a photojournalist arrested for taking pictures outside Tehran's Evin Prison during a student-led protest, died in custody in 2003 after security forces tortured her. Authorities admitted she died as a result of a blow to the head but claimed the death was "unintentional," and acquitted an intelligence officer in 2004.

b. Disappearance

There were reports of politically motivated abductions during the year. Plainclothes officers or security officials often seized journalists and activists without warning and held them in incommunicado detention for several days before permitting them to contact family members. Families of executed prisoners did not always receive notification of their deaths.

In January Sunni cleric Ayoub Ganji disappeared after delivering a Friday sermon in Sanandaj in which he criticized the government's exclusion of candidates in the Majles elections, as well as the custodial death of Ebrahim Lotfallahi. After two weeks, an unmarked car dropped Ganji off in Sanandaj; supporters had threatened to hold mass protests over his disappearance. According to Human Rights Watch (HRW), Ganji was in poor physical condition and suffered from hallucinations and amnesia.

The Iranian-American Jewish Federation reported that 11 Jewish men who disappeared in 1994 and 1997 remained missing. In 2007 witnesses claimed they saw some of the men in Evin Prison.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibit torture; however, there were numerous credible reports that security forces and prison personnel tortured detainees and prisoners.

Common methods of torture and abuse in prisons included prolonged solitary confinement with sensory deprivation, beatings, long confinement in contorted positions, kicking detainees with military boots, hanging detainees by the arms and legs, threats of execution, burning with cigarettes, sleep deprivation, and severe and repeated beatings with cables or other instruments on the back and on the soles of the feet. Prisoners also reported beatings on the ears, inducing partial or complete deafness; punching the area around the eyes, leading to partial or complete blindness; and the use of poison to induce illness. According to HRW, student activists were particularly likely to be subjected to torture and abuse.

In March 30-year-old student activist Ahmad Batebi fled the country; authorities had permitted him to leave Evin Prison temporarily for medical treatment related to a partial stroke. Batebi, whose death sentence for his involvement in a 1999 student protest was commuted to 15 years in prison, stated prison and security officials thrashed him with a metal cable, beat his testicles, kicked in his teeth, and forced his face into a pool of excrement. Batebi stated authorities often tied him to a chair and kept him awake for multiple days and nights, cutting him and rubbing salt into the wounds.

In October Peyman Fatahi was hospitalized after security officials reportedly beat him severely after summoning him for questioning related to his association with a group known as the "Ale-Yasin community." Authorities first arrested Fatahi in June 2007 and conditionally released him after holding him for six months in Evin Prison on charges of "acting against national security." Group members alleged that he was also severely beaten during his 2007 imprisonment.

In January 2007 former political prisoner Kianush Sanjari alleged that he was subjected to "white torture" for extended periods of time while detained at Evin Prison in late 2006. This is a form of extreme sensory deprivation in which prisoners are not shown colors and are held in complete silence (solitary confinement). According to activists, this kind of torture leaves no physical trace, but instead attempts to crush the prisoner psychologically.

In July 2007 the families of three student activists arrested in May and June 2007 sent an open letter to the judiciary chief alleging that security forces tortured their sons in Evin Prison where they remained in solitary cells during the year. Although the judiciary chief reportedly ordered an investigation into the allegations, according to human rights activists, the results of the investigation were not released to the public.

On April 10, HRW called for the government to investigate allegations of torture of activists Behrooz Karimizadh, Peyman Piran, Ali Kantouri and Majid Pourmajid, members of the organization Students Seeking Freedom and Equality whom authorities arrested in December 2007.

Some judicially sanctioned corporal punishments constituted cruel and inhuman punishment, including amputation for multiple theft offenses and lashings and execution by stoning for adultery. In January authorities in Sistan va Baluchistan province amputated the right hands and left feet of five men convicted of armed robbery and kidnapping. On December 15, according to domestic press reports, prison authorities amputated the hand of a man convicted of robbery. Also in December a court sentenced a man to be blinded with battery acid after the man was convicted of doing the same to a woman who had declined his marriage proposals. The sentence had not been carried out by year's end.

During the year the government did not initiate any investigations into reports of torture or punish those believed to be responsible.

Prison and Detention Center Conditions

Prison conditions were poor. Many prisoners were held in solitary confinement or denied adequate food or medical care as a way to force confessions. Overcrowding was a significant problem. In September the UK-based International Center for Prison Studies reported that more than 150,000 prisoners occupied facilities constructed to hold a maximum of 65,000 persons. Numerous prisoners complained that authorities intentionally exposed them to extreme cold for prolonged periods.

Some prison facilities, including Evin Prison, were notorious for cruel and prolonged torture of political opponents of the government. Authorities also maintained "unofficial" secret prisons and detention centers outside the national prison system, where abuse reportedly occurred.

Human rights activists and international press reported cases of political prisoners confined in the same wing as violent felons. In December journalist Shahnaz Gholami, imprisoned for "jeopardizing national security," began a hunger strike to protest being held in a ward with convicted murderers and drug dealers. There were also reports of juvenile offenders detained with adult offenders. Pretrial detainees occasionally were held with convicted prisoners.

The government did not permit independent monitoring of prison conditions by any outside groups, including the International Committee of the Red Cross (ICRC). In September 2007 the government granted foreign journalists a tour of Evin Prison for the second time in two years. According to Agence France-Presse (AFP), during the visit the director of Tehran prisons, Sohrab Soleimani, denied that there were political prisoners in Evin Prison but told the journalists there were 15 prisoners in Evin on "security" charges.

d. Arbitrary Arrest or Detention

The constitution prohibits arbitrary arrest and detention; however, these practices remained common.

Role of the Police and Security Apparatus

Several agencies share responsibility for law enforcement and maintaining order, including the Ministry of Intelligence and Security (MOIS), the LEF under the Interior Ministry, and the Iran Revolutionary Guard Corps (IRGC). The Basij and various informal groups known as the "Ansar-e Hizballah" (Helpers of the Party of God) were aligned with extreme conservative members of the leadership and acted as vigilantes.

Corruption and impunity were problems. The regular and paramilitary security forces both committed numerous, serious human rights abuses, but there were no transparent mechanisms to investigate security force abuses and no reports of government actions to reform them.

Arrest and Detention

The constitution and penal code require warrants or subpoenas for arrests and state that arrested persons must be informed of charges within 24 hours; however, these safeguards rarely occurred in practice. Detainees often went weeks or months without charges or trial, and authorities held detainees incommunicado, frequently denying them prompt contact with family or timely access to legal representation. In practice there was neither a legal time limit for incommunicado detention nor any judicial means to determine the legality of the detention. According to the law, the state is obligated to provide indigent defendants with attorneys only for certain types of crimes. The courts set bail at prohibitively high levels, even for lesser crimes. Detainees and their families were often compelled to submit property deeds to post bail. Prisoners released on bail did not always know how long their property would be retained or when their trials would be held.

There were numerous reports of arbitrary and false arrests during the year.

On February 21, authorities arrested Ebrahim Mirnehad, the brother of journalist Yaghoob Mirnehad, executed on August 4 for alleged ties to separatists. Security agents also reportedly arrested his companion, Fazlorahman Jahras. On September 16, a court in Zahedan sentenced Mirnehad to five years' imprisonment on charges of "acting against national security" and "spreading propaganda." According to Amnesty International (AI), these charges related to his public condemnation of the death sentence imposed on his brother. Authorities reportedly did not grant Mirnehad access to a lawyer and tortured him in custody. Authorities released Jahras.

Adherents of the Baha'i faith continued to face arbitrary arrest and detention. In March and May intelligence agents arrested all seven members of the Baha'i national leadership body and held them in incommunicado detention. On November 26, authorities extended the detention orders for all seven prisoners by an additional two months. At year's end charges had not been filed against the group.

In late June security agents seized brothers Arash and Kamiar Alaei from their mother's home in Tehran. The two physicians, both internationally known HIV/AIDS experts, were held incommunicado in Evin Prison. On December 31, prosecutors in a revolutionary court began to try the brothers for "communicating with an enemy government," a crime which carries a sentence of up to 10 years' imprisonment. According to the doctors' attorney, the government also made secret charges against the brothers. Neither the brothers nor their attorney were informed of the charges, or provided a chance to defend themselves against them. At the end of the year, the Alaeis remained in Evin Prison, and authorities did not allow them to post bail.

In August authorities arrested university professor Mehdi Zakerian for offenses related to national security, including espionage, according to reports from his family. AI speculated that Zakerian's arrest may have been related to his plans to leave the country for a job at a foreign university. After an October 7 meeting with him supervised by security agents, members of Zakerian's family expressed concern that he might have been tortured in prison. Authorities released Zakerian from detention in mid-October.

In early December, three men claiming to be security officers detained and interrogated an American academic for unspecified reasons on two separate occasions for a total of nine hours in his hotel room. The men threatened to prevent the American, traveling in the country as part of a science exchange program, from leaving the country.

During the year and in 2007 security forces separately arrested several Iranian-American activists and academics on charges of espionage and "acting against national security." Prison authorities subjected the individuals to harsh interrogation techniques and solitary confinement and in most cases kept them in prison for several months.

During the year, authorities released Somaye Bayanat, ex-wife of former political prisoner Ahmed Batebi. Bayanat, a dentist, had been detained on charges of forging medical documents and performing illegal abortions since her arrest by plainclothes security forces in February 2007.

Pretrial detention often and arbitrarily was lengthy, particularly in cases in which violations of national security laws were alleged. Of the prisoners held in state prison facilities, reportedly about one-quarter were pretrial detainees.

In recent years the government used house arrest to restrict the movements and communications of senior Shia religious leaders whose views regarding political and governance issues were at variance with the ruling orthodoxy; however, there were no new instances of this practice publicly reported during the year.

e. Denial of Fair Public Trial

The constitution provides that the judiciary is "an independent power"; in practice the court system was corrupt and subject to government and religious influence. After the 1979 revolution, the judicial system was revised to conform to an Islamic canon based on the Koran, "Sunna" (the traditions of the Prophet), and other Islamic sources. The constitution provides that the head of the judiciary shall be a cleric chosen by the supreme leader. The head of the Supreme Court and prosecutor general also must be clerics. Women continued to be barred from serving as certain types of judges.

There are several court systems. The two most active are traditional courts, which adjudicate civil and criminal offenses, and Islamic revolutionary courts. The latter try offenses viewed as potentially threatening to the Islamic Republic, including threats to internal or external security, narcotics and economic crimes, and official corruption. A special clerical court examines alleged transgressions within the clerical establishment, and a military court investigates crimes connected with military or security duties. A press court hears complaints against publishers, editors, and writers. The Supreme Court has review authority over some cases, including appeals of death sentences.

Trial Procedures

Many aspects of the prerevolutionary judicial system survive in the civil and criminal courts. For example, according to the constitution and the criminal procedure code, a defendant has the right to a public trial, presumption of innocence, a lawyer of his or her choice, and the right of appeal in most cases involving major penalties. However, these rights were not respected in practice. Panels of judges adjudicate trials. There is no jury system in the civil and criminal courts. In the press court, a council of 11 persons specifically selected by the court adjudicates the case. Defendants did not have the right to confront their accusers, and were not granted access to government-held evidence.

UN representatives, including UN special representatives (UNSRs) and the UN Working Group on Arbitrary Detention, as well as independent human rights organizations, noted the absence of procedural safeguards in criminal trials. Numerous human rights groups condemned trials in the revolutionary courts for disregarding international standards of fairness. Revolutionary court judges were chosen in part due to their ideological commitment to the system. Authorities often charged individuals with undefined crimes, such as "antirevolutionary behavior," "moral corruption," and "siding with global arrogance." If postrevolutionary statutes did not address a situation, the government advised judges to give precedence to their knowledge and interpretation of Islamic law. Secret or summary trials of only five minutes' duration occurred frequently. Other trials were deliberately designed to publicize a coerced confession.

The legitimacy of the special clerical court system continued to be subject to debate. The clerical courts, which investigate offenses and crimes committed by clerics and which are overseen directly by the supreme leader, are not provided for in the constitution and operated outside the domain of the judiciary. According to a 2007 AI report, defendants could only be represented by court-nominated clerics who are not required to be legally qualified. AI reported that in some cases the defendant was unable to find a person among the nominated clerics willing to act as defense counsel and was tried without legal representation. Critics alleged clerical courts were used to prosecute clerics for expressing controversial ideas and participating in activities outside the sphere of religion, such as journalism or reformist political activities.

Political Prisoners and Detainees

Exact data regarding the number of citizens imprisoned for their political beliefs were not available; however, human rights activists estimated the number in the hundreds. Although there were few details, the government arrested, convicted, and executed persons on questionable criminal charges, including drug trafficking, when their actual "offenses" were political. The

government charged members of religious minorities with crimes such as "confronting the regime" and apostasy, and conducted trials in these cases in the same manner as it would treat threats to national security.

Authorities occasionally gave political prisoners suspended sentences or released them for short or extended furloughs prior to completion of their sentences, but they could be ordered back to prison at any time. These suspended sentences often were used to silence and intimidate individuals. The government also controlled political activists by holding a file in the courts that could be opened at any time and attempted to intimidate the activists by calling them in repeatedly for questioning. Numerous observers considered Tehran public prosecutor Saeed Mortazavi the most notorious persecutor of political dissidents and critics.

Authorities routinely held political prisoners in solitary confinement for extended periods of time and denied them due process and access to legal representation. Political prisoners were also at greater risk of torture and abuse while in detention. The government did not permit access to political prisoners by international humanitarian organizations.

The government reportedly held some persons in prison for years under charges of sympathizing with outlawed groups, such as the terrorist organization Mujahedin-e-Khalq (MEK).

On January 14, police arrested writer and student leader Amin Ghazaini in Tehran along with 14 other students. At year's end, according to AI, authorities reportedly held him in solitary confinement in Evin Prison without charge or trial despite several health problems. Authorities reportedly tortured him and denied him access to family or counsel.

On July 19, a court sentenced political prisoner Behrouz Javid-Tehrani, first arrested during the 1999 student uprising, to three more years in prison following a secret trial in which he did not have legal representation. According to human rights organizations, he was convicted of having contact with foreign opposition groups. At the time of the most recent conviction, Javid-Tehrani was in solitary confinement in Gohardasht Prison in Karaj. Javid-Tehrani alleged security agents severely tortured him on numerous occasions while he was incarcerated.

On February 27, authorities released Azeri cultural and linguistic rights activist Jelil Ghanilou after he posted bail of 860 million rials (approximately \$86,000). Ghanilou claimed he faced torture and constant interrogation after his February 2007 arrest. He was neither charged nor given access to legal representation. AI considered Ghanilou a "prisoner of conscience," detained solely because of the peaceful exercise of his right to freedom of expression in connection with his participation in International Mother Language Day. Authorities released him on bail but rearrested him in May 2007 following demonstrations marking the anniversary of the 2006 publication of a cartoon many Iranian Azeri activists considered offensive.

On May 11, a revolutionary court sentenced Azeri human rights lawyer Saleh Kamrani to a five-year suspended sentence after charging him with "publicity against the Islamic Republic." In August 2007 security forces detained Kamrani and did not inform his family of his whereabouts for several days. Authorities released him in December 2007 after he paid approximately 1.5 billion rials (approximately \$150,000) in bail.

On July 12, a Tehran revolutionary court upheld an eight-year prison sentence against political activist Abbas Khorsandi for "acting against national security through formation of an illegal association." According to human rights groups, Khorsandi founded the Iran Democratic Party, an Internet forum for political debate. Security forces arrested him at his shop in Tehran province in September 2007 and held him incommunicado for three months. At year's end Khorsandi remained in Evin Prison and was reportedly not allowed to see a doctor despite being in ill health.

On April 7, Hadi Qabel, a reformist cleric and member of the reformist political group Islamic Iran Participation Front, began a 40-month term in prison for acting against national security, propaganda against the state, and disturbing public opinion. Qabel, who was tried by the special court for the clergy, also was defrocked. After his initial arrest in September 2007, more than 580 activists and academics released a statement calling for Qabel's release. According to press descriptions, the statement called Qabel's arrest and others an attempt by the government to create a "suffocating environment" in advance of the 2008 Majles elections.

On October 5, authorities officially released journalist and human rights lawyer Emadoldin Baghi, head of the Society for the Defense of Prisoners' Rights, three days before the end of the one-year sentence he was serving. Officials provisionally released Baghi on September 15 to seek treatment for severe health problems he developed while in custody. In July 2007 a revolutionary court convicted Baghi of "activities against national security" and "publicity in favor of the regime's opponents" for his public criticism of the death sentences imposed on several Iranian Arabs in 2005. The court also reportedly sentenced Baghi's wife and daughter to three years in prison, suspended in favor of five years' probation for "assembly and collusion with the aim of committing offenses against the country's national security." While serving his prison sentence, prosecutors brought new charges against Baghi related to his criticism of the treatment of imprisoned human rights activist Sayed Ali Akbar Mousavi-Kho'ini. At year's end these charges were pending.

On November 8, according to press reports, authorities rearrested Ali Nikunesbati, spokesman for the student group Office for Consolidating Unity. Nikunesbati's father said security agents also confiscated his computer and personal documents from his home. In 2007 security forces detained Nikunesbati twice for his role in student protests.

In November supporters of dissident cleric Ayatollah Mohammad Kazemeini Boroujerdi reported that prison authorities severely beat him and moved him from Evin Prison to an undisclosed location despite appeals for release on medical grounds. Police arrested Boroujerdi at his home in 2006, reportedly after he had come under increased pressure from the government for his belief that religion and the state should be separated. Boroujerdi has been arrested and imprisoned several times since 1992 and claimed he was tortured and threatened with execution. In October authorities also rearrested nine of 70 of his followers who were originally arrested in late 2006 and released in 2007.

On October 29, authorities released Azeri activist Abbas Lisani after he completed two consecutive sentences totaling 30 months in prison for participation in two demonstrations. According to AI, security agents interrogated Lisani for 10 hours in early October about his post-release plans, and the Ardebil general prosecutor personally threatened Lisani and his family.

Civil Judicial Procedures and Remedies

By law, the judiciary was independent from the executive and legislative branches; in practice it remained under the influence of executive and religious government authorities. According to the constitution, under the supervision of the head of the judiciary, the Court of Administrative Justice investigates the grievances of citizens with regard to government officials, organs, and statutes. In practice, citizens' ability to sue the government was limited. It appeared that citizens were not able to bring lawsuits against the government for civil or human rights violations. Dispute resolution councils are available to settle minor civil and criminal cases through mediation before referral to courts.

Property Restitution

The constitution allows the government to confiscate property acquired either illicitly or in a manner not in conformance with Islamic law. The UNSR on adequate housing noted religious minorities, including members of the Baha'i faith, were particularly targeted. The UNSR's 2006 report noted the "abusive use of (the law) is seen as an instrument for confiscating property of individuals as a form of retribution for their political and/or religious beliefs." The report noted documentation of approximately 640 Baha'i properties confiscated since 1980, instances of numerous undocumented cases, and court verdicts declaring confiscation of property from the "evil sect of the Baha'i" legally and religiously justifiable. Rights of members of the Baha'i faith were not recognized under the constitution, and they had no avenue to seek restitution of or compensation for confiscated property.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The constitution states that "reputation, life, property, (and) dwelling(s)" are protected from trespass except as "provided by law"; however, the government routinely infringed on these rights. Security forces monitored the social activities of citizens, entered homes and offices, monitored telephone conversations and Internet communications, and opened mail without court

authorization. There were widespread reports that government agents entered, searched, or ransacked the homes and offices of reformist journalists in an attempt to intimidate them.

Vigilante violence included attacking young persons considered too "un-Islamic" in their dress or activities, invading private homes, abusing unmarried couples, and disrupting concerts. During the year, the government continued its crackdown on "un-Islamic dress" or "bad hijab" (headcovering). According to press reports, morality police stopped or detained more than two million individuals during the year and in 2007 for "inappropriate hairstyles" or wearing headscarves that revealed too much hair. There were reports that police used force in these instances less frequently after an image of a girl's face covered in blood following a beating by police for un-Islamic dress was circulated widely in 2007. According to press reports, the Tehran police chief stated the girl had "instigated the incident herself." In December, according to press reports, police in the northern city of Qaemshahr arrested 49 persons for "appearing in public wearing satanic fashions and unsuitable clothing."

There were also reports during the year that the MOIS pressured families of political prisoners, banning them from speaking to foreign press and blocking their telephone conversations. Radio Free Europe journalist Parnaz Azima, sentenced in absentia in March to a one-year prison sentence for "propaganda against the regime," stated the government threatened to seize her 95-year-old mother's home if she did not return to the country to serve the sentence.

Authorities entered homes to remove satellite TV dishes, although the majority of satellite dishes in individual homes reportedly continued to operate.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The constitution provides for freedom of expression and of the press, except when it is deemed "detrimental to the fundamental principles of Islam or the rights of the public." In practice the government severely restricted freedom of speech and of the press. HRW reported that authorities "systematically suppressed freedom of expression and opinion" during the year. Basic legal safeguards for freedom of expression did not exist, and the independent press was subjected to arbitrary enforcement measures by the government, notably the judiciary. Censorship, particularly self-censorship, limited dissemination of information during the year. Journalists were frequently threatened as a consequence of their work.

The government continued to crack down on underground music groups (any group that fails to obtain a recording license from the Ministry of Culture and Islamic Guidance). In October, according to human rights activists, security forces arrested a group of rap musicians returning from a trip to Dubai. Eyewitnesses reported seeing them in Evin Prison. Rap music is forbidden in the country; according to the BBC, it is particularly popular among young men due to its political, social, and sexual lyrics.

In December the Tehran prosecutor general announced the creation of a special office to review Internet and text message-related crimes associated with the June 2009 presidential election.

The country's media outlets were varied, including state-controlled television, radio, and print publications, as well as private newspapers and magazines that cover current affairs, politics, the arts, and sports. The government closely monitored all media outlets, and private media lacked independence in practice. Press members who failed to abide by the government's guidelines faced intimidation, arrest, or closure of their publications. As a result, the government held significant influence over all media in the country. The government's Press Supervisory Board (PSB) was responsible for issuing press licenses, which it sometimes revoked in response to critical articles, and for examining complaints filed against publications or individual journalists, editors, or publishers.

International media did not operate freely; the government required foreign correspondents to provide detailed travel plans and proposed stories before granting visas, and it closely monitored and attempted to influence reporting to garner more favorable coverage. Authorities did not renew the visa and residence permit for Robert Tait, a British correspondent for The

Guardian, forcing Tait to leave the country on January 4. Tait had previously been ordered to leave the country in March 2007 but had successfully appealed the order. On July 22, authorities ordered AFP's Tehran bureau chief Stuart Williams to leave the country, despite Williams' possession of a valid resident's permit. This happened less than two weeks after the AFP reported that the government doctored pictures of a recent missile test.

The government, through a state-controlled entity called the Voice and Vision Organization, directly controlled and maintained a monopoly over all television and radio broadcasting facilities; programming reflected the government's political and socioreligious ideology. Because newspapers and other print media had limited circulation outside large cities, radio and television served as the principal news source for many citizens. Satellite dishes that received foreign television broadcasts were forbidden, and the government periodically confiscated them from homes. Private broadcasting was illegal.

The government imposed significant restrictions on press outlets and banned or blocked some publications that were critical of the government, including Zanan, Asr-e Panjshanbeh, Rah-e Ayandeh, Tehran Emrouz, Hamshahri, Sargarmi, and Sharvand-e Emrouz. The government banned Kargozaran for publishing an excerpt from a statement by a student group that criticized Hamas actions during the crisis in Gaza. The closure of reformist newspapers led to unemployment among progressive journalists, effectively silencing them. On March 16, the PSB announced the closure of nine cinema and lifestyle magazines for publishing pictures and stories about the life of "corrupt" foreign film stars and promoting "superstitions." On March 20, domestic press reported that the government had banned 27 publications in 2007.

The PSB referred complaints to the press court for further action, including closure. The court's hearings were conducted in public with a jury composed of appointed clerics, government officials, and editors of government-controlled newspapers. Public officials often lodged criminal complaints against reformist newspapers that led to their closure, along with fines for offending writers. Some human rights groups asserted that the increasingly conservative press court assumed responsibility for cases before PSB consideration.

The press law forbids censorship but also forbids disseminating information that may damage the Islamic Republic or offend its leaders and religious authorities, and censorship occurred. Government officials also routinely intimidated journalists into practicing self-censorship.

On January 15, an Interior Ministry official told an Iranian Students News Agency reporter the media could not use the names of unauthorized political parties. In September 2007 the deputy interior minister announced that "publications and other media outlets are forbidden from writing about parties or political groups that have not obtained a license." These actions followed other reports of government efforts to limit political debate and the spread of information in advance of the Majles elections.

On April 26, Minister of Culture and Islamic Guidance Mohammad Hossein Saffar-Harandi told publishers and writers that they "were aware of the vetting code, so (they should) censor pages which are likely to create a dispute" and urged writers to observe the country's "religious, moral, and national sensitivities."

On September 30, according to a press report, former Deputy Interior Minister Mostafa Tajzadeh stated that the government imposed censorship regarding the government's nuclear policy "to the greatest degree."

There were no updates to the July 2007 announcement by the head of the president's public relations office regarding the creation of a special team to confront publications critical of the government.

During the year, the government detained, jailed, tortured, or fined numerous publishers, editors, and journalists (including Internet media) for their reporting. The penal code states that "anyone who undertakes any form of propaganda against the state" can be imprisoned as long as one year; the law does not define "propaganda." The law also subjects writers to prosecution for instigating crimes against the state or national security or "insulting" Islam; the latter offense is punishable by death.

On June 13, authorities reportedly arrested journalist Mahboubeh Karami after she criticized police for beating demonstrators. She was held on a charge of "activity against national security" in Evin Prison. Authorities released Mahboubeh on August 26 after she paid bail.

On July 25, Intelligence Ministry officials arrested Kurdish journalist Saman Rasoulpour and detained him on charges of "distributing propaganda against the state." He was released on bail on August 13. Rasoulpour works for a domestic nongovernmental organization (NGO) and writes for the publication Rooz Online.

On September 10, authorities arrested four Azeri journalists--Alireza Safari, Said Mohamadi, Hossain Rashedi, and Akbar Azad--as they met with a political activist in Tehran. According to NGO reports, on September 17, a judge ordered they be detained without access to a lawyer and without informing their families of the charges against them. They were reportedly released on bail on November 11.

On March 1, a Tehran court sentenced Radio Free Europe journalist Parnaz Azima in absentia to a one-year prison sentence for "propaganda against the regime," according to Reporters Without Borders (RSF). Authorities confiscated Azima's passport in January 2007 when she entered the country and prevented her from leaving for eight months. At year's end she remained in self-imposed exile. In January authorities allowed French-Iranian filmmaker Mehrnousse Solouki to leave the country, according to RSF. In February 2007 authorities arrested Solouki for "intent to commit propaganda against the regime" after she discovered a mass grave outside Tehran in the course of her research on the burial rites of some religious minorities. After one month in Evin Prison, she was released on bail, but the government held her passport and prevented her from leaving the country for 10 months.

On June 11, a Tehran revolutionary court reportedly gave journalist Said Matinpour an eight-year suspended sentence for "publicity against the Islamic Republic" and "maintaining relations with foreigners." Matinpour was arrested in May 2007 and held in pretrial detention until his release on bail on February 26, with no contact with his family or lawyer for most of that time.

In August the supreme leader conditionally released student journalists Ahmad Ghassaban, Ehsan Mansouri, and Majid Tavakoli from prison. They had been detained since May and June 2007 on national security charges related to a publication in a university newspaper.

On March 1, a court sentenced journalist Bahman Ahmadi Amoei to a six-month suspended sentence for "activity against national security." Police arrested Amoei, who works for the publication Sarmayeh, in June 2007 while he was covering a demonstration in Tehran. At year's end, authorities were holding his passport, preventing him from leaving the country.

On March 17, a court sentenced Kurdish journalist Abdolvahed "Hiva" Boutimar to death for a second time on espionage-related charges. The original July 2007 death sentence against Boutimar was overturned in October 2007 on a procedural point, but his case was retried. On September 4, the Supreme Court overturned a death sentence against Kurdish journalist Adnan Hassanpour. The death sentence against Hassanpour was originally issued in July 2007 and following an appeal was upheld by the Supreme Court in December 2007. Hassanpour, the cousin and colleague of Boutimar, currently faces retrial on espionage-related charges.

The Ministry of Culture and Islamic Guidance must grant permission to publish any book, and it inspected foreign printed materials prior to their domestic release.

Internet Freedom

According to NGO reports, the government increased control over the Internet during the year as more citizens used it as a source for news and political debate. Government and independent reports estimated that approximately 18 to 23 million citizens used the Internet. The government imposed limits on Internet speed and technology, making it more difficult to

download Internet material or to circumvent government restrictions to access blocked Web sites. In December RSF reported that the government censored 38 Web sites during the year.

All Internet service providers (ISPs) must be approved by the Ministry of Culture and Islamic Guidance, and the government used filtering software to block access to domestic blogs and some Western Web sites, reportedly including the Web sites of prominent Western news organizations and NGOs. The government required all owners of Web sites and blogs in the country to register with the Ministry of Culture and Islamic Guidance; however, in practice this regulation was rarely enforced.

In February authorities banned five Web sites "for poisoning the public domain," according to RSF. One of the sites, which was operating again at year's end, had criticized Ayatollah Khomeini's grandson after he questioned the government's disqualification of Majles election candidates.

On April 8, authorities arrested blogger and journalist Esmail Jafari and seized his computer equipment, which allegedly held photos of a demonstration in Bushehr. Officials released Jafari on April 24, but on December 6, a court sentenced him to five months in prison for "antigovernment publicity." At year's end he was free pending an appeal.

On April 22, security forces arrested blogger Omidreza Mirsayafi and detained him for 41 days in Evin Prison. On December 15, a revolutionary court in Tehran sentenced him to 30 months in prison for propaganda against the state and criticism of the supreme leader.

On May 9, authorities blocked access to Mehdi Mohseni's blog after a post describing problems caused by pollution in Khuzestan. The government has reportedly blocked access to this site four times since 2004.

On May 21, the government blocked access to at least 14 feminist Web sites in anticipation of the upcoming presidential election, according to NGO reports. All of the sites had supported the "One Million Signatures" campaign to change the country's laws that discriminate against women.

On August 12, the government began filtering the Web site Alef, making it inaccessible to users inside the country, according to a domestic report. The report indicated that the site had questioned the validity of new Interior Minister Ali Kordan's degree from Oxford University. The filtering was lifted on August 30, following an order from the judiciary chief.

On November 29, according to RSF, a clerical court sentenced online journalist Mojtaba Lotfi to four years in prison and a five-year banishment from his home city of Qom for publishing a sermon by Ayatollah Hussein Ali Montazeri that was critical of the president. Authorities arrested Lotfi in October. He was previously arrested in 2004 on similar charges.

On November 20, security officers arrested well-known blogger Hossein Derakhshan in Tehran. At the end of the year, judiciary officials confirmed they were holding Derakhshan but did not specify the charges against him.

In November authorities arrested blogger and activist Shahnaz Gholami for publishing "propaganda against the Islamic Republic" and "jeopardizing national security." A court sentenced her to six months in prison.

Academic Freedom and Cultural Events

The government significantly restricted academic freedom. In 2006 President Ahmadi-Nejad called for the removal of secular and liberal professors from universities. Reports indicated dozens of university professors were dismissed, forced to retire, or denied sabbaticals abroad since 2006. To obtain tenure, professors had to refrain from criticism of the authorities.

Admission to universities was politicized; in addition to standardized exams, all applicants had to pass "character tests" in which officials eliminated applicants critical of the government's ideology. Members of the Basij were given advantages in the admissions process. Student groups reported that a "star" system inaugurated by the government in 2006 to rank politically

active students was still in use. Students deemed "antigovernment" through this system reportedly were banned from university or prevented from registering for upcoming terms.

The government censored cultural events with stringent controls on cinema and theater and a ban on Western music. It also monitored cultural associations. As the main source of production funding, the government also effectively censored domestic filmmaking. Producers were required to submit scripts and film proposals to government officials in advance of funding approval. Movies promoting secularism, feminism, unethical behavior, drug abuse, violence, or alcoholism were illegal, and some domestic directors were blacklisted. A 2006 NGO report noted that censorship by authorities and a culture of self-censorship strongly inhibited artistic expression in the country.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The constitution permits assemblies and marches "provided they do not violate the principles of Islam"; in practice the government restricted freedom of assembly and closely monitored gatherings to prevent antigovernment protests. Such gatherings included public entertainment and lectures, student meetings and protests, labor protests, women's gatherings and protests, funeral processions, and Friday prayer gatherings. According to activists, the government arbitrarily applied rules governing permits to assemble, with conservative groups rarely experiencing difficulty, and groups viewed as critical of the government experiencing harassment regardless of whether a permit was issued.

The government continued to prohibit and forcibly disperse peaceful demonstrations during the year. Paramilitary organizations such as the Ansar-e Hizballah also harassed, beat, and intimidated those who demonstrated publicly for reform. They particularly targeted university students.

From late February to early March, students at Shiraz University held a peaceful sit-in; they called for the university president's resignation, greater student freedom, and better dormitory conditions. According to Radio Farda and the International Campaign for Human Rights in Iran, authorities arrested at least a dozen of the organizers, beat some of the students they arrested, and held some in solitary confinement during their detention.

On June 12, police arrested at least nine women who organized a meeting to commemorate the two-year anniversary of the largest feminist demonstration in Tehran. Officials banned the meeting in advance and stationed security forces outside the location. Authorities reportedly released the women the following day.

Many individuals who participated in demonstrations during 2006 and 2007 remained imprisoned at year's end. Ali Reza Hashemi, head of the Iranian Teachers Organization, remained under a three-year suspended sentence for "provoking teachers to gather and organizing to disrupt the national security of the country."

Freedom of Association

The constitution provides for the establishment of political parties, professional associations, Islamic religious groups, and organizations for recognized religious minorities, as long as such groups do not violate the principles of "freedom, sovereignty, and national unity" or question Islam as the basis of the Islamic Republic; however, the government limited freedom of association in practice through threats, intimidation, imposing arbitrary requirements on organizations, and arresting group leaders and members.

On October 1, security forces arrested teachers seeking to attend a trade union meeting to discuss World Teachers Day, according to Education International. Authorities released all of those arrested, although Education International alleged that some of the teachers had been beaten. According to foreign NGOs, authorities arrested as many as 400 teachers around the country during the year.

On May 25, authorities released Heshmatollah Tabarzadi, general secretary of the political party Democratic Iranian Front, who had been detained without charge in Evin Prison since November 2007 for founding the party and allegedly damaging national security.

c. Freedom of Religion

The constitution states that Shia Islam is the state religion and that all laws and regulations must be based on Islamic criteria. The constitution also nominally protects other Islamic denominations, Zoroastrianism, Christianity, and Judaism; however, the government severely restricted freedom of religion in practice, particularly the Baha'i faith.

The central feature of the country's Islamic system was rule by the "religious jurisconsult." Its senior leadership consisted principally of Shia clerics, including the supreme leader of the revolution, the head of the judiciary, and members of the Assembly of Experts and the Guardian Council.

Apostasy was punishable by death according to Shari'a law. There were no reported instances of the death penalty being applied for apostasy during the year. On August 20, Intelligence Ministry officials in Mashhad arrested Ramtin Soodmand, a Christian preacher, and took him to an unknown detention center. Authorities released Soodmand in November, and at year's end he was awaiting trial on charges of "promoting antigovernment propaganda," although his family maintained he was arrested solely for expression of his religious beliefs. The government executed Soodmand's father in 1990 for apostasy due to his conversion 30 years earlier from Islam to Christianity.

The government continued to repress Baha'is and prevent them from practicing their religion by closing their places of worship. It banned them from government and military leadership posts, the social pension system, and public schools and universities, unless they concealed their faith. The courts also denied Baha'is the right to inherit property and refused to recognize Baha'i marriages or divorces. According to the law, Baha'i blood is considered "mobah," meaning Baha'is may be killed with impunity. The government repeatedly pressured Baha'is to recant their religious beliefs in exchange for relief from mistreatment.

According to human rights groups, all seven members of the Baha'i national leadership body and a total of at least 40 Baha'is were imprisoned at year's end.

On December 28, authorities on Kish Island arrested and interrogated Faegheh Rafeie and eight of her relatives, including several minors, for discussing their Baha'i faith with a local shopkeeper. Authorities released some members of the group the following day but held others for two to three more days.

All religious minorities suffered varying degrees of officially sanctioned discrimination, particularly in employment, education, and housing. In 2006 the UNSR for adequate housing visited the country and reported that rural land, particularly that belonging to minorities including Baha'is, was expropriated for government use, and owners were not fairly compensated. Inheritance laws favored Muslims over non-Muslims.

According to human rights activists, the government continued to grow increasingly intolerant of Sufism.

On November 16, a court sentenced Amir Ali Mohammad Labaf to a five-year prison term, 74 lashes, and internal exile to the southeastern town of Babak for "spreading lies," based on his religious practices as a member of one of the country's largest Sufi sects, the Nematollahis or "Gonabadi Dervishes." Security agents reportedly arrested numerous other Gonabadi Dervishes during the year in other cities, including Isfahan and Karaj.

On December 30, security services arrested five members of the Sufi community without official charges in Hormozgan province and confiscated their books and computer equipment.

During the year clerics in Qom accused the Sufi community of "opposing Islamic ideas." In 2006 police in Qom arrested approximately 1,200 Sufis and closed a major center of Sufi worship.

With the exception of Baha'is, the government allowed recognized religious minorities to conduct religious education of their adherents, although it restricted this right considerably in some cases. The law required all Muslim students to take Islamic studies courses.

Proselytizing of Muslims by non-Muslims was illegal. The authorities have been increasingly vigilant in recent years in curbing proselytizing activities by evangelical Christians.

The government carefully monitored the statements and views of all religious leaders, including the country's senior Muslim religious leaders. It restricted the movement of several Muslim religious leaders who had been under house arrest for years and continued to detain at least one dissident cleric, Ayatollah Boroujerdi, during the year. The government pressured all ranking clerics to ensure their teachings conformed to (or at least did not contradict) government policy and positions.

Societal Abuses and Discrimination

Government actions continued to support elements of society who created a threatening atmosphere for some religious minorities.

Sunni Muslims and Christians encountered societal and religious discrimination and harassment at the local, provincial, and national levels. Some Mandeans reportedly fled the country in previous years to escape discrimination.

The government's anti-Israel stance, in particular the president's repeated speeches decrying the existence of Israel and calling for the destruction of its "Zionist regime," coupled with the perception among many citizens that Jewish citizens supported Zionism and Israel, created a threatening atmosphere for the community. Government officials also continued to make statements and organize events during the year designed to cast doubt on the Holocaust.

On June 2, President Ahmadi-Nejad said that Israel "will be wiped off the pages of history" and on August 24 that "the celebration of the elimination of Zionism and destruction of the arrogant will soon be held."

On August 17, the president made remarks in which he referred to the Holocaust as a "historical lie" perpetuated to justify Israel's existence.

On September 26, a Holocaust denial book by student members of the Basij was released. The cover depicted a hook-nosed Jew dressed in traditional Jewish clothing drawing outlines of dead bodies on the ground. Inside pages pictured bearded Jews leaving and re-entering a gas chamber with a counter reading 5,999,999. Another picture showed a hospital patient covered in an Israeli flag and on life support, breathing lethal Zyklon-B gas used in the Holocaust.

In previous years several programs broadcast on state-run TV reportedly espoused anti-Semitic messages; a domestic newspaper held a Holocaust denial editorial cartoon contest; and the government sponsored a conference focused on denial of the existence or scope of the Holocaust.

In recent years the government made the education of Jewish children more difficult by limiting distribution of nonreligious Hebrew texts and requiring several Jewish schools to remain open on Saturday, the Jewish Sabbath. There were limits on the level to which Jews could rise professionally, particularly in government.

For a more detailed discussion, see the 2008 International Religious Freedom Report at 2009-2017.state.gov/j/drl/irf/rpt ([//2009-2017.state.gov/j/drl/irf/rpt](https://2009-2017.state.gov/j/drl/irf/rpt)).

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The constitution provides for freedom of movement within the country, foreign travel, emigration, and repatriation; however, the government placed some restrictions on these rights. The government cooperated with the Office of the High Commissioner for Refugees (UNHCR) with regard to some refugees from Afghanistan and Iraq.

The government required exit permits for foreign travel for all citizens. Some citizens, particularly those whose skills were in short supply and who were educated at government expense, had to post bond to obtain an exit permit. The government restricted the foreign travel of some religious leaders and individual members of religious minorities and scientists in sensitive fields, and it targeted journalists, academics, and activists for travel bans and passport confiscation.

On March 3, authorities removed human rights activist Parvin Ardalan from her flight, confiscated her passport, and served her with a court summons as she was leaving the country for Stockholm to receive a humanitarian award, according to Human Rights First. Authorities told her she must present invitations to conferences abroad as a precondition for the removal of her travel ban, although the law does not require individuals to seek prior permission to travel.

On October 26, authorities banned women's rights activist Sussan Tahmasebi from leaving the country, according to RSF. Authorities had summoned Tahmasebi to court for questioning regarding postings on a women's rights Web site. Police also placed Tahmasebi under surveillance.

At year's end Abdolfattah Soltani, a lawyer who represented several political prisoners, remained under a travel ban imposed in 2005.

A woman must obtain the permission of her husband, father, or other male relative to obtain a passport. A married woman must receive written permission from her husband before leaving the country.

The government did not use forced external exile; however, the government used internal exile as a punishment, and many dissidents practiced self-imposed exile to be able to express their beliefs freely.

There were indications that members of all religious minorities were emigrating at a high rate, although it was unclear whether the reasons for emigration were religious or related to overall poor economic conditions.

Protection of Refugees

The law provides means for granting asylum or refugee status to qualified applicants in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, and the government had a system for providing protection to refugees. The government did not always provide protection against the expulsion or return of refugees to countries where their lives or freedom would be threatened.

On December 1, UNHCR estimated that there were 915,000 registered Afghan refugees in the country, 3,166 of whom the UNHCR repatriated to Afghanistan during the year. The government continued to postpone discussions to renew the tripartite repatriation agreement; however, at an international conference on resettlement and repatriation held in Kabul in November, the government verbally committed to permit registered Afghan refugees to stay until they voluntarily repatriate or resettle elsewhere.

In addition to the 915,000 registered Afghan refugees, UNHCR estimated as many as 1.5 million Afghans illegally resided in the country as migrant workers. The government continued to deport illegal Afghan migrants. On March 4, the government announced it would deport all Afghans who lacked refugee documentation, and UNHCR reported that 403,000 Afghans were deported. There were reports of some registered refugees included in mass deportations during the last several years, although these reports were not officially documented. According to HRW, many of those deported received no warning that they were being deported, and many were separated from their families or had little time to collect belongings and wages. Other deportees claimed they were beaten, detained, or required to perform forced labor for several days before being deported. Among the deportees were vulnerable individuals and families who required humanitarian assistance upon arrival in

Afghanistan. At the November conference on Afghan refugees in Kabul, the Iranian delegate stated that Afghan refugees would continue to be treated as "respected guests" and that the two countries were discussing the issuance of 300,000 visas to Afghan workers. However, no new visa arrangement had been announced by year's end.

Since 2007 authorities maintained approximately 19 "No Go Areas" in the country for Afghan refugees, according to UNHCR. Refugees were required to register and relocate in areas the government approved; those who did not were considered unregistered and remained subject to deportation. Afghan and Iraqi refugees faced a lack of job opportunities, and the government at times failed to grant them residence or work permits, effectively preventing them from obtaining health insurance coverage.

According to UNHCR, a total of 58,091 Iraqis were registered as refugees in the country during the year. The government's 2007 registration was open only to Iraqis who had arrived before 2005. UNHCR registered later arrivals. Voluntary repatriation by Iraqis increased over the past two years; UNHCR did not assist any Iraqi repatriations in 2006 but supported 238 in 2007 and 2,376 during the year. However, UNHCR noted that most repatriates were those who fled Iraq before 2007 and new Iraqi refugees continued to arrive in the country. The majority of Iraqi refugees lived in urban areas, but an estimated 5,000 Iraqis lived in 12 settlements and received UNHCR and World Food Program assistance.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The constitution provides citizens the right to change peacefully the president and the parliament through free and fair elections; however, the authority of unelected representatives over the election process severely abridges this right in practice. The Assembly of Experts elects the supreme leader, the recognized head of state, who can be removed only by a vote of the assembly. The assembly was composed of 86 members and was restricted to clerics, who served eight-year terms and were chosen by popular vote from a list approved by the Guardian Council (a 12-member body composed of government-appointed clerics and religious jurists). There was no separation of state and religion, and clerical influence pervaded the government. The supreme leader also approved the candidacy of presidential candidates, with the exception of an incumbent president.

Elections and Political Participation

On March 14, the country held Majles elections, which outside observers regarded as neither free nor fair. The Interior Ministry rejected the candidacy of almost 2,000 applicants, citing disqualifying reasons such as "having ill repute in their place of residency," "insulting religious sanctities," and "acting against the state," according to HRW. Authorities disqualified numerous other candidates following closed-door negotiations with the Guardian Council. Most of the disqualified candidates were considered reformists. Conservatives won approximately 70 percent of the seats.

The constitution allows for the formation of political parties, although the Interior Ministry granted licenses only to political parties with ideological and practical adherence to the system of government embodied in the constitution. There were more than 240 registered political organizations, but most were small entities, often focused around an individual, and did not have nationwide membership. Political parties approved by the Interior Ministry generally operated without restriction or outside interference.

According to the Guardian Council's interpretation, the constitution barred women and persons of non-Iranian origin or religions other than Shia Islam from becoming president. Women were also barred from serving as supreme leader or as members of the Assembly of Experts, Guardian Council, or Expediency Council (a body responsible for mediating between the Majles and the Guardian Council and serving as a consultative council for the supreme leader). Two of the 10 vice presidents were women. Eight women served in the Majles during the year. Five Majles seats were reserved for the recognized religious minorities. Other ethnic minorities in the Majles included Arabs and Kurds. There were no non-Muslims in the cabinet or on the Supreme Court.

Government Corruption and Transparency

The law provides criminal penalties for official corruption; however, the government did not implement the law effectively, and official corruption remained a serious problem in all three branches of government, including the "bonyads" (tax-exempt foundations designed for charitable activity that control consortia of substantial companies).

All government officials, including cabinet ministers and members of the Guardian Council, Expediency Council, and Assembly of Experts were required to submit annual financial statements to the state inspectorate. There was no information available regarding whether these government officials obeyed the law.

In January authorities executed a customs contractor for corruption and sentenced three other customs employees to death for "office corruption and other economic crimes," including accepting a bribe of more than 10 billion rials (approximately one million dollars).

Also in January a court sentenced three state gas company managers to 10 years in prison and 74 lashes each for taking bribes totaling 23 billion rials (approximately \$2.3 million), according to international press reports.

On June 11, authorities arrested former parliamentarian Abbas Palizdar for "spreading lies and slander" and "causing public distress," according to international press reports. In May, Palizdar publicly accused senior religious leaders and politicians of involvement in corruption. Following his speeches, which were widely circulated on the Internet, judiciary officials arrested and indicted 11 persons named by Palizdar, most of them government employees, on corruption charges. At year's end Palizdar had not gone to trial.

On June 18, according to domestic press reports, authorities detained Abdollah Shahbazi for several days on charges of "slander and spreading lies," after he claimed on his Web site that several high-ranking officials from Fars province had expropriated land.

There were no laws providing for public access to government information.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The government continued to restrict the work of human rights groups and sometimes responded to their inquiries and reports with harassment, arrests, monitoring, unlawful raids, and closures. The government continued to deny the universality of human rights and stated that human rights issues should be viewed in the context of a country's "culture and beliefs." On May 20, judiciary chief Hashemi Shahroudi told the Human Rights Task Force, an intragovernmental entity established in 2001, that the international community uses human rights as a weapon against the Islamic world.

Hundreds of domestic NGOs operated in areas such as health and population, women's rights, development, youth, environmental protection, human rights, and sustainable development during the year despite the restrictive environment, including pressure not to accept foreign grants. During the year, the government routinely restricted human rights defenders, civil society activists, journalists, and scholars from traveling abroad, particularly to attend international conferences.

According to AI, independent human rights groups and other NGOs faced intensifying harassment and threat of closure from government officials as a result of prolonged and often arbitrary delays in obtaining official registration.

Human rights activists also reported receiving intimidating phone calls and threats of blackmail from unidentified law enforcement and government officials. Government officials routinely harassed family members of human rights activists, including making false criminal charges against them and blocking their access to higher education. Courts routinely applied suspended sentences to human rights activists; this form of sentencing acted as de facto probation, leaving open the option for authorities to suddenly and arbitrarily arrest or imprison individuals. This threat was sometimes enough to silence activists or pressure them into providing information about other activists.

On December 21, security forces unlawfully raided and closed the Center for the Defense of Human Rights, a Tehran NGO headed by Nobel Peace Prize laureate Shirin Ebadi. The raid occurred immediately prior to a scheduled ceremony to celebrate the 60th anniversary of the Universal Declaration of Human Rights. According to the state-run Islamic Republic News Agency, a Foreign Ministry spokesman said the government closed the center for operating without a valid permit. On December 29, government security officers posing as tax officials raided Ebadi's private law offices, seizing office files and computers.

Professional groups representing writers, journalists, photographers, and others attempted to monitor government restrictions in their respective fields, as well as harassment and intimidation against individual members of their professions. The government severely curtailed these groups' ability to meet, organize, or effect change.

In 2007 local NGO the Society for the Defense of the Rights of Prisoners published its second report about prison conditions in the country. There was no indication during the year that the government responded to the group's appeal for attention to cases of political prisoners.

In March 2007 a revolutionary court closed the offices of three prominent civil society and women's rights NGOs, the Iran Civil Society Organizations Training and Research Center, the Raahi Legal Center, and the NGO Training Center after authorities briefly detained activists affiliated with these organizations, including Sohrab Razzaghi, Shadi Sadr, and Mahboubeh Abbasgholizadeh, and charged them with violations related to their NGO activities.

Despite receiving numerous appeals, the government denied requests from international human rights NGOs to establish offices in or conduct regular investigative visits to the country. The last visit by an international human rights NGO was AI's 2004 visit as part of the European Union's human rights dialogue with the country. In October, according to domestic press reports, the interior minister stated that the government would refuse any request by the American-Iranian Council to open an office inside the country.

The ICRC and UNHCR both operated in the country with some restrictions. According to HRW, since the government issued a standing invitation to all UN human rights agencies in 2002, there have been six visits to the country by UN special human rights institutions; however, the government generally ignored recommendations these bodies made and failed to submit required reports to the UN Human Rights Committee and the UN Committee on Economic, Social, and Cultural Rights.

The government ignored repeated requests for visits by UN special rapporteurs covering the areas of arbitrary executions, freedom of religion, torture, independence of judges, and minority issues.

The December 18 UNGA resolution on the country's human rights record called on the government to respect fully its human rights obligations and to abolish torture, arbitrary imprisonment, and juvenile and public executions, including stonings. The resolution also called on the government to eliminate discrimination and other human rights violations against women and religious, linguistic, and ethnic minorities. In an October report, the UN secretary-general criticized the country's human rights record and urged the government to do more to combat discrimination against women and minorities in the country.

In 2001 the supreme leader called for the creation of a human rights task force, chaired by the judiciary chief and comprising the ministers of intelligence, interior, foreign affairs, justice, and culture, as well as other judicial and military officials. The committee, which did not convene until 2006, was not considered effective. In one of his first public statements as the committee secretary, Mohammad Javad Larijani defended death by stoning as a punishment for adultery.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

Although the constitution formally prohibits discrimination based on race, gender, disability, language, and social status "in conformity with Islamic criteria," the government discriminated on the basis of religion, gender, ethnicity, and sexual orientation.

Women

Rape is illegal and subject to strict penalties, but it remained a problem. Spousal rape is not illegal.

Spousal abuse and violence against women occurred. According to a study published during the year using 2005 data, 27 percent of women reported being physically abused during the survey year. Abuse in the family was considered a private matter and seldom discussed publicly, although there were some efforts to change this attitude. Domestic violence was not specifically prohibited by law, but some nongovernmental shelters and hotlines existed to assist victims.

According to a police official quoted in a domestic newspaper during the year, 50 honor killings were reported during a seven-month period, although official statistics were not available. The punishment for perpetrators was often a short prison sentence.

In May a man local papers identified as Ahmad allegedly killed his daughter in Isfahan after her former brother-in-law kidnapped and slept with her. Both men were in police custody at year's end.

In June a man identified as Morteza allegedly killed his sister near Bandar Abbas after she married a man without her family's permission. Local press reported that Morteza would be sentenced to only three to five years in prison since the victim's parents did not seek a murder charge.

Prostitution is illegal, but it took place under the legal cover of "sigheh," or temporary marriage. International press reports described prostitution as a widespread problem. The problem appeared aggravated by difficult economic conditions and rising numbers of drug users and runaway children. In March authorities arrested Tehran police chief Reza Zarei after he was discovered in a brothel during a police raid.

There was a lack of reliable data on the prevalence of sexual harassment in the country; however, media reports indicated unwanted physical contact and verbal harassment occurred. There are laws addressing sexual harassment in the context of physical contact between men and women. In June, thousands of university students in Zanzan protested an alleged episode of sexual harassment of a student by a university official.

The constitution nominally provides women with equal protection under the law and all human, political, economic, social, and cultural rights in conformity with Islam; however, provisions in the Islamic civil and penal codes, in particular sections dealing with family and property law, discriminate against women. Shortly after the 1979 revolution, the government repealed the 1967 Family Protection Law that provided women with increased rights in the home and workplace and replaced it with a legal system based largely on Shari'a practices.

Although a male can marry at age 15 without parental consent, the law states that a virgin female needs the consent of her father or grandfather to wed, or the court's permission, even if she is older than 18. The country's Islamic law permits a man to have as many as four wives and an unlimited number of sigheh, based on a Shia custom in which a woman may become the wife of a Muslim male after a simple religious ceremony and a civil contract outlining the union's conditions. Such wives were not granted rights associated with traditional marriage. The government does not recognize marriages between Muslim women and non-Muslim men or Baha'i marriages.

Women have the right to divorce only if the husband signs a contract granting that right; cannot provide for his family; or is a drug addict, insane, or impotent. A husband was not required to cite a reason for divorcing his wife.

Traditional interpretations of Islamic law recognized a divorced woman's right to part of shared property and to alimony. The law provides divorced women preference in custody for children up to seven years of age; however, divorced women who remarry are forced to give the child's father custody. After the child reaches seven years of age, the father is entitled to custody (except in cases in which the father was proven unfit to care for the child). The court determined custody in disputed cases.

A man could escape punishment for killing a wife caught in the act of adultery if he was certain she was a consenting partner; the same rule does not apply for women whose husbands committed adultery. Women sometimes received disproportionate punishment for crimes such as adultery, including death sentences. The law provides that a victim of stoning is allowed to go free if he or she escapes; however, it is much harder for women to escape, as they are buried to their necks, whereas men are buried to their waists.

The testimony of two women is equal to that of one man. The blood money paid to the family of a female crime victim is half the sum paid for a man.

Women had access to primary and advanced education. Reportedly 65 percent of university students were women; however, government officials admitted the use of quotas to limit women's university admissions in certain fields, such as medicine and engineering. In addition, social and legal constraints limited their professional opportunities. Women were represented in many fields of the work force, including the legislature, municipal councils, police, and firefighters. According to a World Economic Forum report, the unemployment rate for women was 17 percent, compared with 10 percent for men. Women cannot serve as president or as certain types of judges. Women may be consultant and research judges without the power to impose sentences.

The government enforced gender segregation in most public spaces, including medical care, and prohibited women from mixing openly with unmarried men or men not related to them. Women must ride in a reserved section on public buses and enter public buildings, universities, and airports through separate entrances.

The penal code provides that if a woman appears in public without the appropriate Islamic covering (hijab), she can be sentenced to lashings and/or fined. However, absent a clear legal definition of appropriate hijab or the punishment, women were at the mercy of the disciplinary forces or the judge. Pictures of uncovered or immodestly dressed women in the press or in films were often digitally altered.

The government intensified its campaign against members of the "One Million Signatures" campaign, which activists launched in 2006 to promote women's rights and demand changes to discriminatory laws. In a report released October 20, UN secretary-general Ban Ki-Moon noted "an increasing crackdown in the past year on the women's rights movement."

On April 8, security forces arrested campaign member Khadijeh Moghaddam at her home. A revolutionary court reportedly charged her with "spreading propaganda against the state," "disrupting public opinion," and "actions against national security." Officials released her on bail on April 16.

On October 15, authorities arrested an Iranian-American dual citizen for an alleged traffic violation in Tehran and held her in solitary confinement in Evin Prison for one month. She was in the country conducting research on the women's rights movement for her graduate thesis. On November 10, authorities released her on bail, but she remained under a travel ban at the end of the year.

On October 17, authorities ordered Parastoo Alahyaari and several other campaign activists to submit their identity cards after security officers broke up their meeting in a public park in Tehran. On October 18, authorities searched Alahyaari's home and confiscated her computer and many personal belongings.

On November 21, according to human rights activists, authorities arrested Mehri Moshrefi, her husband, and two of her children and transferred them to Evin Prison. Security officers reportedly arrested them at a cemetery where the "One Million Signatures" campaign was staging a protest; activists claimed the family was not involved in the gathering. Authorities held Moshrefi's two children (one of whom was a minor) for one month; Moshrefi and her husband remained in Evin Prison at year's end. Prison officials did not allow the family to contact their third child, who was not with the rest of the family at the time of arrest, for more than two weeks.

Several members of the "One Million Signatures" campaign, including Parvin Ardalan, Nushin Ahmadi Khorasani, and Sussan Tahmasebi, remained under suspended prison sentences and travel bans at year's end. A court sentenced Fariba Davoudi Mohajer to one year in prison in absentia after she spoke publicly about these activists during a trip outside the country.

In May a court sentenced Amir Yaghoub Ali to one year in prison for "endangering national security" due to his work for the "One Million Signatures" but later suspended the sentence for four years. In July 2007 security forces detained him in Evin Prison for four weeks for collecting signatures on behalf of the campaign in Tehran's Andishe Park.

In July 2007 authorities sentenced women's rights activist Delaram Ali to 20 lashes and 34 months in prison for her participation in a 2006 women's rights rally. The judge charged her with "acting against national security" and "propaganda against the system." Following international protests, in November 2007 the judiciary reduced her sentence to 10 lashes and two and one half years in prison and then temporarily suspended her sentence.

In August 2007 authorities sentenced Nasim Sarbandi and Fatemeh Dehdashti to six months in prison and two-year suspended sentences reportedly for collecting signatures for "One Million Signatures" at a Tehran train station.

On August 13, authorities charged Ronak Safazadeh with "spreading propaganda against national security." Security agents arrested Safazadeh in Sanandaj in October 2007 for collecting signatures for "One Million Signatures." On September 6, a court sentenced her to nine months in prison and fined her for publicizing the conditions of her detention; at year's end authorities had not tried Safazadeh for the original charges against her.

On June 18, a court sentenced Hana Abdi, whom police arrested in November 2007 for collecting signatures for "One Million Signatures," to five years' imprisonment. On October 7, a court reduced her sentence to 18 months.

On January 2, authorities released women's rights activists Maryam Hosseinkhah and Jelveh Javaheri. Police arrested both women in late 2007 for "propaganda against the system."

The government Center for Women and Family continued to publish reports on feminism with a negative slant and limited the debate on women's issues to only those related to the home.

Children

There was little current information available to assess government efforts to promote the welfare of children.

Although primary schooling up to age 11 is free and compulsory, media and other sources reported lower enrollment rates for girls than boys in rural areas.

There was little information available to reflect how the government dealt with child abuse, including child labor. Abuse was largely regarded as a private family matter, and there was no evidence of progress as a result of 2005 UN Children's Fund actions to prevent child abuse in the country. According to the UN's Integrated Regional Information Network, child sexual abuse was rarely reported.

The law requires court approval for the marriage of girls younger than 13 and boys younger than 15; however, it was reportedly not unusual in rural areas for parents to have their children marry before they become teenagers, often for economic reasons.

There were reportedly significant numbers of children, particularly Afghan but also Iranian, working as street vendors in Tehran and other cities and not attending school.

Trafficking in Persons

The law prohibits human trafficking. However, according to foreign observers, the country was a source, transit, and destination point for trafficking. Women and girls were trafficked from the country to Pakistan, Turkey, Europe, and the Gulf states for sexual exploitation and involuntary servitude. Boys from Bangladesh, Pakistan, and Afghanistan were trafficked through the country to Gulf states. Afghan women and girls were trafficked to the country for sexual exploitation and forced marriages. Internal trafficking for sexual exploitation and forced labor also occurred. In some cases, authorities tried and convicted persons involved in trafficking.

In September 2007 police reportedly disbanded an international smuggling network based in Tehran, but it was unclear how many, if any, of these were actual trafficking offenses. The group smuggled women and girls from Central Asia through the country to the Gulf states. Police reportedly arrested 25 persons for involvement in the network. There were also reports that the government arrested and punished several trafficking victims on charges of prostitution or adultery.

The State Department's annual Trafficking in Persons Report can be found at 2009-2017.state.gov/j/tip_//2009-2017.state.gov/j/tip).

Persons with Disabilities

Discrimination against persons with disabilities was prohibited by law. The law also provided for state-funded vocational education for persons with disabilities, but according to domestic news reports, vocational centers were confined to urban areas and unable to meet the needs of the entire population of persons with disabilities. Building accessibility for persons with disabilities remained a widespread problem.

National/Racial/Ethnic Minorities

The constitution grants equal rights to all ethnic minorities and allows for minority languages to be used in the media and schools. The government disproportionately targeted minority groups, including Kurds, Arabs, Azeris, and Baluch, for arbitrary arrest, prolonged detention, and physical abuse. These groups also reported political and economic discrimination, particularly in the provision of economic aid, granting of business licenses, university admissions, permission to publish books, and housing and land rights. State broadcasting had weekly programs in ethnic languages, but the government consistently denied minorities their constitutional right to study and use their language in school.

In 2007 then interior minister Mustafa Purmohammadi ranked ethnic divisions as one of the biggest problems his ministry had to address. The government blamed foreign entities, including a number of Western countries, for instigating some of the ethnic unrest. Other groups claimed the government staged the 2005 and 2006 Khuzestan bombings as a pretext for repression.

According to AI, in January authorities detained and questioned three child care facility directors in Kurdistan province on the grounds that they permitted the teaching of a nonnational language. Authorities threatened other facilities with closure. Kurds were not allowed to register certain names for their children in official registries.

On July 9, security forces arrested Zeinab Bayazidi in Kurdistan province and charged her with "acting against national security" and "belonging to an illegal organization" for her work with a human rights group. According to human rights activists, a court sentenced her to four years in prison after a secret trial with numerous irregularities.

On August 8, according to domestic human rights groups, security forces arrested journalist and Kurdish rights activist Massoud Kordpour on espionage charges related to interviews he gave to foreign media outlets. Authorities reportedly held Kordpour incommunicado for several months before a revolutionary court sentenced him to one year in prison.

On October 30, a Tehran appeals court upheld an 11-year prison sentence against Kurdish journalist Mohammad Sadegh Kaboudvand according to NGO reports. Police arrested Kaboudvand in July 2007 after he founded the Human Rights Organization of Kurdistan (HROK) in 2005. He was serving his sentence at year's end, and family members reported he had

severe health problems, including a second heart attack in December.

On February 25, a revolutionary court sentenced to death Farzad Kamangar, superintendent of high schools in Kamayaran, on charges of "endangering national security." Kamangar was involved with a number of civil society organizations, including the local teacher's union, an environmental group, and HROK. The court also sentenced fellow Kurdish activists Ali Heydarian and Farhad Vakili to death. In July the Supreme Court upheld the three death sentences. On November 24, according to AI, prison officials removed Kamangar from his cell, beat him, and threatened him with execution. Authorities originally arrested the three men in 2006 for their human rights activism.

In 2006 Kurds clashed with police, reportedly resulting in three deaths and more than 250 arrests. There were also strikes and demonstrations in 2005 following the killing of a Kurdish activist by security forces. According to HRW and other sources, security forces killed at least 17 persons and wounded and arrested large numbers of others.

In February authorities tried Sa'id Sa'edi, a founder of the East Kurdistan Cultural Research Institute, and Ajlal Qavami, a journalist and board member of HROK, on charges of criminal damage relating to their participation in a peaceful demonstration in 2005.

Foreign representatives of the Ahvazi Arabs of Khuzestan claimed their community of 2 to 4 million in the southwest section of the country suffered from oppression and discrimination, including the lack of freedom to study and speak Arabic. Ahvazi and human rights groups alleged torture and mistreatment of Ahvazi Arab activists, including detention of the spouses and young children of activists.

In September a court sentenced Arab journalist Mohammad Hasan Falahezadeh to three years in prison. Authorities arrested Falahezadeh in December 2007 for his reporting of street protests by members of the Arab minority in Ahvaz. On October 5, he began a hunger strike to protest prison officials' alleged denial of basic legal rights.

Ethnic Azeris comprised approximately one-quarter of the country's population, were well integrated into government and society, and included the supreme leader among their numbers. However, Azeris complained of ethnic and linguistic discrimination by the government, including banning the Azeri language in schools, harassing Azeri activists or organizers, and changing Azeri geographic names. Azeri groups also claimed there were a number of Azeri political prisoners jailed for advocating cultural and language rights for Iranian Azeris. The government charged several of them with "revolting against the Islamic state."

In a series of arrests beginning in July, police reportedly detained at least eight Azeri-Iranian students in Tabriz and charged them with "establishing illegal groups in order to disrupt national security" and "propaganda against the state." According to AI, the student activists were campaigning for greater cultural and linguistic rights, including the right to education using the Azeri language and the right to celebrate Azeri culture and history. On October 28, all but one were released on bail; at year's end, Dariush Hatemi remained in prison because he was unable to raise the bail of 500 million rials (approximately \$50,000) required for his release.

On September 10, authorities arrested a group of Azeri cultural rights activists, including author Hasan Rashedi, poet Mehdi Naimi Ardabili, writer Alireza Sarafi, and journalist Saeed Mohammadi Moghalani, at an Iftar celebration. Authorities held the men incommunicado and without charge for several weeks before releasing them on bail on November 9.

In 2006 there were large-scale riots in the Azeri majority regions of the northwest following publication of a newspaper cartoon that depicted a cockroach speaking in Azeri. Police forcibly contained the protests and reported that four persons were killed and several protesters were detained. Authorities blamed foreign governments for inciting unrest.

Local and international human rights groups alleged serious economic, legal, and cultural discrimination against the Baluch minority during the year. The government did not investigate allegations that authorities in Sistan va Baluchistan executed at least 50 detainees in 2007 (see section 1.a.). Baluch journalists and human rights activists, including Yaghoob Mirnehad,

faced arbitrary arrest, physical abuse, and unfair trials, often ending in execution.

Other Societal Abuses and Discrimination

The Special Protection Division, a volunteer unit of the judiciary, monitored and reported moral crimes. The law prohibited and punished homosexuality; sodomy between consenting adults was a capital crime. According to HRW, the last known death sentences for homosexual conduct were handed down in 2005, although there were allegations of executions related to homosexual conduct in 2006 and 2007. The punishment of a non-Muslim homosexual was harsher if the homosexual's partner was Muslim. On September 29, President Ahmadi-Nejad called homosexuality an "unlikable and foreign act" that "shakes the foundations of society."

On February 28, police reportedly raided a home in Isfahan and arrested approximately 30 men on accusations including consensual homosexual conduct. The men were held for multiple weeks without access to lawyers and without being charged, according to HRW.

Persons with HIV/AIDS reportedly faced discrimination in schools and workplaces. The government supported programs for HIV/AIDS awareness and generally did not interfere with private HIV/AIDS-related NGOs.

Section 6 Worker Rights

a. The Right of Association

The law provides workers the right to establish unions; in practice the government did not permit independent unions. A national organization known as Workers' House was the sole authorized national labor organization. It served primarily as a conduit for government control over workers. The leadership of Workers' House coordinated activities with Islamic labor councils in industrial, agricultural, and service organizations comprising more than 35 employees. These councils, which consisted of representatives of workers and a representative of management, also functioned as instruments of government control but nonetheless frequently blocked layoffs and dismissals in support of workers' demands. Restrictions on the ability of workers to associate continued during the year.

On June 24, the Ministry of Labor and Social Affairs threatened to dissolve the Association of Iranian Journalists (AIJ) because it allegedly failed to uphold its internal regulations. According to RSF, authorities sought the removal of the association's executive committee on grounds of alleged procedural irregularities in voting during its general assemblies. On July 6, the Ministry of Culture and Islamic Guidance sent a letter instructing domestic newspapers not to report on the group. The AIJ held internal elections to satisfy the Ministry of Labor's concerns but had yet to receive their approval at year's end.

On December 22, according to human rights groups, security agents arrested trade union member Mohsen Hakimi on unspecified charges. His whereabouts were unknown at year's end.

In April 2007 security forces arrested 45 members of the Hamedan Teachers' Association. Judiciary officials stated the teachers were arrested because of their continued affiliation with a banned organization. In December 2007 a court sentenced nine of the members to 91 days' imprisonment for "participating in unlawful strikes" and for closing schools.

On April 6, authorities released labor activist Mahmoud Salehi, former head of the Saqqez Bakery Workers' Union, after he spent one year in prison for "acting against national security"; the court immediately opened another case against him, for which Salehi reportedly posted bail of 430 million rials (approximately \$43,000). He was free pending trial at year's end.

On August 25, authorities reportedly transferred labor leader Mansur Osanloo from Evin Prison to Rajayee Shahr Prison in the city of Karaj. Osanloo, who reportedly suffered from numerous health problems, remained in custody under a 2007 charge of "acting against national security" and "propaganda against the system." In July 2007 unidentified men arrested and detained

him, following repeated arrests in 2006. Osanloo, head of the Syndicate of Bus Drivers of the Tehran and Suburbs Bus Company (Sherkat-e-Vahed), had been targeted by the government because of his calls for labor rights.

On December 27, plainclothes security agents arrested Ebrahim Madadi in Tehran on unknown charges. Authorities previously arrested Madadi in August 2007 for protesting the arrest of Mansur Osanloo and released him in December 2007 following an appeals court ruling that cleared him of the charge of acting against national security.

Ali Reza Hashemi, head of the Iranian Teachers Organization, remained under a three-year suspended sentence on charges related to a March 2007 protest during which security forces arrested hundreds of teachers demanding pay and benefits equal to those government employees received. According to a domestic labor rights organization, authorities held dozens of the teachers in Section 209 of Evin Prison for as long as 60 days without charges, before releasing most of them on bail of approximately 300 million rials (approximately \$30,000) each.

The law prohibits public sector strikes, and the government considered unlawful any strike deemed contrary to its economic and labor policies, including strikes in the private sector; however, strikes occurred. According to an October UNGA report, attempts to create a number of workers' associations and conduct labor strikes over wages have been met with arbitrary arrests and violence by security forces.

b. The Right to Organize and Bargain Collectively

Workers did not have the right to organize independently or to negotiate freely collective bargaining agreements. According to the International Trade Union Confederation, labor legislation did not apply in export processing zones.

c. Prohibition of Forced or Compulsory Labor

The labor code prohibits all forms of forced or compulsory labor, including by children; however, there were reports that such practices occurred. Female citizens were trafficked internally for the purpose of forced prostitution. Citizen children were trafficked internally, and Afghan children were trafficked to the country for the purpose of forced commercial sexual exploitation and involuntary servitude as beggars and laborers.

d. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits employment of minors younger than 15 years and places restrictions on the employment of minors younger than 18; however, the government did not adequately enforce laws pertaining to child labor, and child labor was a serious problem. The law permits children to work in agriculture, domestic service, and some small businesses, but prohibits employment of minors in hard labor or night work. There was no information regarding enforcement of these regulations.

According to government sources, 3 million children were prevented from obtaining education because their families forced them to work. Unofficial sources claimed the figure was closer to 5 million. In 2007 Tehran reportedly opened several shelters for street children. There were reportedly significant numbers of children--particularly Afghan but also Iranian--working as street vendors in major urban areas. Many Afghan children were unable to attend school because they lacked birth certificates or identification cards, which the government reportedly refused to issue in an effort to curb illegal immigration.

e. Acceptable Conditions of Work

The law empowers the Supreme Labor Council to establish annual minimum wage levels for each industrial sector and region. In March President Ahmadi-Nejad increased the minimum wage levels by 20 percent to 2.2 million rials (approximately \$220) per month, which labor groups stated did not provide a decent standard of living for workers and their families. There was no information regarding mechanisms to set wages, and it was not known whether minimum wages were enforced. Afghan workers, especially those working illegally in the country, often were paid less than the minimum wage.

The law establishes a maximum six-day, 48-hour workweek, with a weekly rest day, normally Friday, and at least 12 days of paid annual leave and several paid public holidays.

According to the law, a safety council, chaired by the labor minister or his representative, protects workplace safety and health. Labor organizations outside the country have alleged that hazardous work environments were common in the country and resulted in thousands of worker deaths annually. The quality of safety regulation enforcement was unknown, and it was unknown whether workers could remove themselves from hazardous situations without risking the loss of employment.

* The United States does not have an embassy in Iran. This report draws heavily on non-U.S. Government sources.

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